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February 5, 2026

By: Jech

An Act relating to groundwater use; amending 82 O.S. 2021, Section 1020.17, which relates to spacing rules; conforming statutory reference; removing requirement for certain public hearing; authorizing adoption of certain spacing; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 82 O.S. 2021, Section 1020.17, is amended to read as follows:

Section 1020.17. The Oklahoma Water Resources Board may promulgate rules under Article I of the Administrative Procedures Act which establish a proper spacing of wells which, in its judgment, is necessary to an orderly withdrawal of water in relation to the allocation, by regular permits and temporary permits, of water to the land overlying the basin or subbasin. The Board ~~shall~~ may ~~conduct at least one public hearing at a location within or in close proximity to each major basin or subbasin before adopting rules establishing well spacing for such basin or subbasin~~ adopt specific spacing for each basin as part of establishing a maximum annual yield pursuant to Section 1020.6 of this title.

SECTION 2. This act shall become effective November 1, 2026.

COMMITTEE REPORT BY: COMMITTEE ON ENERGY
February 5, 2026 - DO PASS